3753 Temporary

Executive Order

AUTHORIZING THE ALIEN PROPERTY CUSTODIAN TO SELL CERTAIN PROPERTY AT PRIVATE SALE

By virtue of the authority vested in me by an Act of Congress entitled "An act to define, regulate, and punish trading with the enemy and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendment to such act embodied in "An act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such Act embodied in "An act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919 and prior fiscal years on account of war expenses, and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination and order:

The Alien Property Custodian is hereby authorized to sell at private sale, at such time and place as to him or to his authorized agent may seem advisable, without public or other advertisement, the following described notes which were heretofore seized by the Alien Property Custodian under the provisions of the said Act, as the property of the Bank für Handel und Industrie, Berlin, Germany:

> Two Hundred Thousand Dollars ($200,000.00) face value United Railways Investment Company Four-year five per cent (5%) Gold Notes, Nos. 1 to 100 inclusive and 151 to 250 inclusive, for One Thousand Dollars ($1000.00) each, dated February 1, 1917, due February 1, 1921, but extended, with interest thereon at the rate of eight per cent (8%) per annum, to mature in the following manner, namely, twelve and one-half per cent (12½%) of the principal thereof on the first day of August in the years 1921, 1922, 1923 and 1924 respectively, and the remaining fifty per cent (50%) of the principal thereof on the first day of February, 1925, the unpaid balance of the principal thereof having now been reduced to One Hundred and Fifty Thousand Dollars ($150,000.00) by the payments of August 1, 1921 and August 1, 1922, totaling Fifty Thousand Dollars ($50,000.00).

My reasons for the foregoing determination and order are:

(a) That property such as that herein described cannot usually be sold to advantage at public sale after public or other advertisement.

(b) That an advantageous offer for the purchase of the said notes has been received by the Alien Property Custodian, namely, One Hundred and Fifteen Thousand Dollars ($115,000.00), or nearly seventy-seven per cent (77%) of the unpaid balance of the principal thereof, plus accrued interest, which the Alien Property Custodian, after thorough investigation, has found to be the best price obtainable therefor.

(c) That the said Bank für Handel und Industrie has expressed its desire that the said notes be sold at the best price obtainable approximate to eighty per cent (80%) of the face value thereof without accrued interest.

(d) That an attempted sale at auction would be a useless formality and would involve unnecessary expense, delay and inconvenience, which should be avoided.

WARREN G HARDING

THE WHITE HOUSE,
November 14, 1922.

[No. 3753.]

GOVERNMENT PRINTING OFFICE